

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHADAE HANSON, STACY HANSON, OSHANE
LEVY AND DIAMOND LEVY,
Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DOMINIQUE ARMENIO,
SHIELD 18629 AND POLICE OFFICER JOSEPH SORRENTINO
SHIELD 15954 OF THE 802 COMMAND; POLICE OFFICER
STEVE TORRES, SHIELD 17913 AND POLICE OFFICER
TAYLOR CORCORAN, SHIELD 5130 OF THE 075 COMMAND;
POLICE OFFICER JESSICA MARTINEZ, POLICE OFFICER
JESSICA RODRIGUEZ, SGT. JONATHAN GRAJALES, SHIELD
18182, DET. MICHAEL GANZ, SHIELD 4821 OF 75TH DET
SQUAD; LT. WALSH OF HOUSING; POLICE OFFICER ALFREDO
VARELA, SHIELD 11290; POLICE OFFICERS JOHN DOE #1 - #6
AND POLICE OFFICERS JANE DOE #1 - #2 (FICTITIOUS NAMES
BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN)
ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND
AS POLICE OFFICERS,

Defendants,

-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 4, 2022

/s/ Edward Pichardo

Law Office of Edward Pichardo, PLLC
Attorney for the Plaintiffs
112 West 34th Street, 18 Fl.
New York, NY 10120

SUMMONS

Index No.:

Date Purchased:

Plaintiffs designate
Kings County as the
place of trial.
The basis of venue is
that Kings County is
the place where the
cause of action arose.

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Dominique Armenio
Shield # 18629
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Joseph Sorrentino
Shield # 15954
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Steve Torres
Shield #17913
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Taylor Corcoran
Shield #5130
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Jessica Martinez
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Jessica Rodriguez
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Lt. Walsh
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Sgt. Jonathan Grajales
Shield # 18182
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Det. Michael Ganz
Shield # 4821
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officer Alfredo Varela
Shield # 11290
c/o 75th Pct.
1000 Sutter Avenue
Brooklyn, NY 11208

Police Officers John Doe #1-6
Address Currently Unknown

Police Officers Jane Doe #1-2
Address Currently Unknown

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ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND
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Defendants,

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Plaintiffs, Stacy Hanson, Shadae Hanson, Oshane Levy and Diamond Levy by their
attorneys, Law Office of Edward Pichardo, PLLC, as and for a Verified Complaint allege as
follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City
of New York, hereinafter referred to as "CITY" was and still is a municipal corporation
duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned the Defendant, New
York City Police Department, hereinafter referred to as "NYPD", its agents, servants
and/or employees operated, maintained and controlled the New York City Police

Department, and the New York City Department of Corrections hereinafter respectively referred to as “NYPD”, including all the Police Officers therein.

3. Upon information and belief, Police Officer Dominique Armenio, hereinafter referred to as “Armenio,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
4. Upon information and belief, Police Officer Joseph Sorrentino, hereinafter referred to as “Sorrentino,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
5. Upon information and belief, Police Officer Steve Torres, hereinafter referred to as “Torres,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief, Police Officer Taylor Corcoran, hereinafter referred to as “Corcoran,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
7. Upon information and belief, Police Officer Jessica Martinez, hereinafter referred to as “Martinez,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

8. Upon information and belief, Police Officer Jessica Rodriguez, hereinafter referred to as “Rodriguez,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
9. Upon information and belief Police Officer, Lt. Walsh, hereinafter referred to as “Walsh,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
10. Upon information and belief, Police Officer Sgt. Jonathan Grajales, hereinafter referred to as “Grajales,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
11. Upon information and belief, Police Officer Det. Michael Ganz, hereinafter referred to as “Ganz,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
12. Upon information and belief, Police Officer Alfredo Varela, hereinafter referred to as “Varela,” at all times hereinafter mentioned, and on the 7th day of March, 2021 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the 75th Pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
13. Upon information and belief, Police Officers John Doe #1-#6, hereinafter referred to as “John 1-6,” at all times hereinafter mentioned and on the 7th day of March, 2021, were

employed as Police Officers by the “CITY” and/or “NYPD”, were assigned to the 75th Pct., and were acting in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.

14. Upon information and belief, Police Officers Jane Doe #1-#2, hereinafter referred to as “Jane 1-2” at all times hereinafter mentioned and on the 7th day of March, 2021, were employed as Police Officers by the “CITY” and/or “NYPD”, were assigned to the 75th Pct., and were acting in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
15. Hereinafter the police officers present at the location set forth below are collectively referred to as “the Police Officers/Defendants”.
16. The incident set forth below occurred at the location of Livonia Avenue and Cleveland Street, Brooklyn, New York, hereinafter referred to as “the location”, on March 7, 2021 at approximately 7:50 pm.
17. At all relevant times hereinafter mentioned, Plaintiff Stacy Hanson, hereinafter referred to as “Stacy”, and was a resident of Kings County, residing at 617 Warwick Street 2nd Fl., Brooklyn, New York 11207.
18. At all relevant times hereinafter mentioned, Plaintiff Shadae Hanson hereinafter referred to as “Shadae” and was resident of Kings County, residing at 617 Warwick Street 2nd Fl. Brooklyn New York 11207.
19. At all relevant times hereinafter mentioned, Plaintiff, Oshane Levy, hereinafter referred to as “Oshane”, and was a resident of Kings County, residing at 429 Bainbridge Street #4D, Brooklyn, New York 11233.
20. At all relevant times hereinafter mentioned, Plaintiff, Diamond Levy, hereinafter referred to as “Diamond”, and was a resident of Kings County, residing at 429 Bainbridge Street #4D, Brooklyn, New York 11233.

21. Stacy, Shadae, Oshane and Diamond shall hereinafter collectively be referred to as the “Plaintiffs”.
22. The “Plaintiffs” have each individually filed Notices of Claim advising of the nature of their claims. The Plaintiffs have each submitted to a 50 h hearing.
23. The Defendants have not offered to settle the Plaintiffs’ claims.
24. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

25. On March 7, 2021, at the approximate hours of 7:50-8:30 p.m., the Plaintiffs were lawfully in the car driving at the location of Livonia Avenue and Cleveland Street in the County of Kings within the State of New York.
26. At said location, Oshane was alerted by Diamond and/or Shadae that an unmarked vehicle was behind their car.
27. Oshane pulled the car to the right to allow the unmarked vehicle to pass. The unmarked police vehicle did not pass but instead stopped in front of Oshane’s car blocking the car’s movement.
28. The Police Officers/Defendants approached Oshane, Diamond, Stacy and Shadae.
29. In anticipation of an order to roll down the car windows Oshane rolled down all four windows.
30. The Police Officers/Defendants approached the vehicle with their flashlights shining into the car and faces of the Plaintiffs. Once the Police Officers/Defendants reached the vehicle they ordered Oshane to place the car in park.
31. Oshane complied but in doing so one of the named Police Officers/Defendants reached into the car and grabbed Oshane’s hand and attempted to open the driver side door.

32. Oshane yelled “What are you doing”? Oshane was then punched in the face several times.
33. Another of the named Police Officers/Defendants reached over Diamond trying to shift the car in park. The Police Officers/Defendants then opened the front passenger side door and threw punches at Oshane over Diamond.
34. The Police Officers/Defendants then opened the driver side door. Oshane was forced out of the car and was assaulted and /or beaten while he had his infant daughter in his lap. Stacy at this time was asking the Defendants, “What happen we were just driving with my son and grandbabies.”
35. Stacy’s granddaughter previously jumped into Oshane’s lap and as she exited the vehicle she yelled, in sum and substance that the beating of her son was not right.
36. Shadae observed her brother Oshane being choked and forcibly removed from his vehicle.
37. Shadae exited the vehicle and was punched in her face. Shadae then punched back for which she was slammed into several cars until her father intervened as he yelled at the Police Officers/Defendants that were assaulting and/or beating his daughter.
38. At that moment Shadae was thrown to the ground and handcuffed.
39. Shadae was kneed in the back as she laid on the ground. Police Officers/Defendants continuously applied pressure on her handcuffs arms/hands and tased her twice.
40. While detained a male Police Officer/Defendant continuously rubbed his male gentiles against her buttocks as she demanded for a female officer. Shadae was transferred to the 75th Pct. where she was refused medical treatment.
41. Shadae was fingerprinted, photographed and processed.
42. Shadae was released at 6:00 p.m. the next day. Shadae sought medical treatment at Brookdale hospital.
43. Shadae was prescribed pain medication and muscle relaxers.

44. Stacy while out of the vehicle yelled in sum and substance that the beating of Oshane was not right.
45. Stacy was pushed while holding her son in her arms for which her son escaped her arms and ran away.
46. Stacy then retrieved her son as she observed her older son being beat.
47. Police Officer-Defendant then kicked Stacy in the leg/foot.
48. After being kicked, Stacy observed Shadae, and Oshane on the ground being tased while handcuffed.
49. Stacy sought medical treatment for her foot and elbow.
50. Stacy also received pain medication for her injuries.
51. As a result of the police misconduct Stacy's baby son has been traumatized and now wakes up suddenly in the night and cries when he hears sirens.
52. On March 7, 2021, Oshane was forcibly removed from the vehicle.
53. Oshane while holding his daughter was punched in the face and mouth causing injury to his lips. While being battered and assaulted by the Police Officers/Defendants his infant daughter was also struck in the face. The Police Officers/Defendants then removed his infant daughter from his arms as they kicked him in the knees.
54. Police Officers/Defendants placed a handcuff on his left hand and squeezed with force on his left wrist.
55. Police Officers/Defendants jumped on top of Oshane and placed both of his hands behind his back while throwing him to the pavement.
56. While on the floor, Police Officer/Defendant placed his/her knee and pressed down on Oshane's back. Oshane was tasered by the Police Officers/Defendants.

57. Oshane was pulled up off the ground while his pants and underwear were down to his ankles thereby exposing his genitals to all who were present.
58. Police Officers/Defendants took no steps to pull up his pants and/or underwear before placing him into a police vehicle in that state.
59. Oshane was transported in a police vehicle to New York City Police Department, Police Service Area 2 (PSA 2).
60. After arriving at PSA 2, Oshane was told by Police Officer/Defendant that he was going to lose custody of his daughter while at the same time squeezing the handcuffs.
61. Oshane asked the Police Officer/Defendant why he was doing that and to please stop. His plea to the Policer Officer/Defendant was ignored.
62. Oshane was fingerprinted, photographed and processed.
63. Oshane was placed in a locked cell where he spent several hours. During that time, he informed Police Officers/Defendants that he was in pain and needed medical attention. The request for medical attention was denied.
64. Oshane was then transported to Central Booking in Downtown Brooklyn where he remained in custody until the next day and released on his own recognizance.
65. Oshane sought medical attention and was diagnosed with multiple contusions and abrasions.
66. Oshane suffered injury to his left wrist, right knee, face and mouth. Oshane also suffered trauma, fear, shock and embarrassment.
67. Oshane was prescribed an antibiotic, muscle relaxant and a pain reliever.
68. On March 7, 2021 Diamond was in the front passenger seat of the vehicle. While seated she was punched by the Policer Officers/Defendants.

69. Diamond was dragged out of the vehicle by Police Officer/Defendant and was hurt.
70. Diamond was pushed onto the driver side hood of the vehicle with her arms behind her back. Diamond was then forced to the ground and placed in handcuffs
71. After the Police Officer/Defendant placed handcuffs on Diamond she was slammed on to the ground with her stomach touching the pavement.
72. After Diamond was placed back on her feet she saw Police Officers/Defendants holding her infant children and yelled “those are my babies.”
73. Police Officer/Defendant responded by saying “you’re a stupid bitch, you’re stupid.”
74. Diamond was forcefully dragged by Police Officer/Defendant from one police vehicle to another until she was placed in one of them and transported to PSA 2.
75. After arriving at PSA 2, while standing outside she saw Police Officer/Defendant holding one of her children and she stated “my baby is not supposed to be here.”
76. Diamond was fingerprinted, photographed and processed.
77. Diamond was placed in a locked cell where she spent several hours before being transported to Central Booking in Downtown Brooklyn.
78. Diamond remained in custody until the next day and was released on her own recognizance.
79. Diamond sought medical attention and was diagnosed with back strain, lumbar sprain and hip sprain. Diamond also suffered trauma, fear, shock and embarrassment.
80. Diamond was prescribed a muscle relaxant and pain reliever.
81. Diamond’s son and daughter have been traumatized and now wake up suddenly in the night and cry when they hear sirens. Diamond’s daughter was struck in the head when she was forcibly removed from her father’s arms by Police Officer/Defendant.

82. All criminal charges were dismissed against all the Plaintiffs after several court appearances.
83. Shadae, Oshane, Diamond and Stacy did not commit any crime nor contribute to the misconduct and excessive force by the Defendants-Officers.
84. Shadae, Oshane, Diamond and Stacy assert that the herein named Police Officers/Defendants were all responsible and involved in the violations of their rights, including but not limited to, battery, assault, false detention, false imprisonment, false arrest, illegal search and seizure, use of excessive force, malicious prosecution and civil right violations.
85. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST THROUGH FOURTH CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE DETENTION/ARREST/IMPRISONMENT ON
BEHALF OF THE PLAINTIFFS EACH WITH A CAUSE OF ACTION
RESPECTIVELY ALLEGES:**

86. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "85" with the same force and effect as if more fully and at length set forth herein.
87. That on the 7th day of March 2021, at or between the approximate hours of 7:50-8:30 pm, the Defendants, and their agents, servants and/or employees intentionally held, detained, imprisoned and/or arrested the Plaintiffs without any just cause or grounds therefore.
88. Each of said Plaintiffs were held against their will under full force of arms.
89. Each Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to their false detention, imprisonment and/or arrest by the Defendants,

their agents, servants and/or employees and was forced to submit to having their freedom restricted and said imprisonment entirely against their will.

90. That the Defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine each of the Plaintiffs' movement and freedom; each of the Plaintiffs was conscious of their confinement; each of the Plaintiffs did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.

91. That by reason of the aforesaid false detention, imprisonment and/or arrest of each of the Plaintiffs was subjected to great indignity, humiliation, pain and great distress of mind and body, and said Plaintiffs have been otherwise damaged.

92. That by reason of the aforesaid, the Plaintiff, Shadae, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

93. That by reason of the aforesaid, the Plaintiff, Oshane, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

94. That by reason of the aforesaid, the Plaintiff, Diamond, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

95. That by reason of the aforesaid, the Plaintiff, Stacy, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH THOUGH THE EIGHTH CAUSES OF ACTION ON BEHALF
OF ALL PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR BATTERY AND
ASSAULT, EACH PLAINTIFF ALLEGES:**

96. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "95" with the same force and effect as if more fully and at length set forth herein.

97. That commencing on the 7th day of March 2021, at the approximate hours of 7:50-8:30 pm, at the "the location", the Defendant officers and upon information and belief other officers

presently unknown, while acting in the scope of their employment as police officers and as agents for the Defendant the “CITY” and “NYPD”, without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, and violated each Plaintiffs’ civil rights.

98. Upon information and belief, the officers had absolutely no reason or just cause to falsely detained, imprisoned, arrested, battered, assaulted, and violated each Plaintiffs’ civil rights.
99. The battery and assault and physical contact was not privileged.
100. The battery and assault took place while the Plaintiffs had committed no crime.
101. That the Defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant “CITY” and/or “NYPD”, within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named Plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to “the Plaintiffs”.
102. That said acts caused apprehension of such offensive contact to each of “the Plaintiffs”, and the Defendants caused such battery and assault in and about his body and limbs.
103. That by reason of the aforesaid intentional battery and assault, each Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that each was otherwise damaged.
104. That by reason of the aforesaid, the Plaintiff, Shadae, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
105. That by reason of the aforesaid, the Plaintiff, Oshane, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
106. That by reason of the aforesaid, the Plaintiff, Diamond, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

107. That by reason of the aforesaid, the Plaintiff, Stacy, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A NINTH THROUGH TWELFTH CAUSES OF ACTION AGAINST
ALL NAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS AND
INDIVIDUALLY FOR EXCESSIVE FORCE UNDER STATE LAW, EACH OF
THE PLAINTIFFS ALLEGE:**

108. “The Plaintiffs” repeat, reiterate and reallege each and every allegation contained in paragraphs marked “1” through “107” with the same force and effect as if more fully and at length set forth herein.

109. That commencing on the 7th day of March 2021, at the approximate hours of 7:50-8:30 pm, at the “the location”, the Defendant officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the Defendant the “CITY” and “NYPD”, without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, used excess force and violated each Plaintiffs’ civil rights.

110. Upon information and belief, the officers had absolutely no reason or just cause to falsely detain, imprison, arrest, batter, assault, use excessive force and violate each Plaintiffs’ civil rights.

111. The use of excessive force was not privileged.

112. The use of excessive force took place while the Plaintiffs had committed no crime.

113. That the Defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant “CITY” and/or “NYPD”, within the scope of their employment, intentionally, willfully, and maliciously battered, assaulted and used excessive force against each of the named Plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to “the Plaintiffs”.

114. That said acts caused apprehension of such offensive contact to each of “the Plaintiffs”, and the Defendants caused such battery, assault and use of excessive force in and about their body and limbs.
115. That by reason of the aforesaid intentional battery, assault, and use of excessive force each Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that each was otherwise damaged.
116. That by reason of the aforesaid, the Plaintiff, Shadae, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
117. That by reason of the aforesaid, the Plaintiff, Oshane, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
118. That by reason of the aforesaid, the Plaintiff, Diamond, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
119. That by reason of the aforesaid, the Plaintiff, Stacy, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A THIRTEENTH THROUGH SIXTEENTH CAUSES OF ACTION
AGAINST ALL NAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS
AND INDIVIDUALLY FOR EXCESSIVE FORCE-42 U.S.C. 1983 VIOLATIONS,
EACH OF THE PLAINTIFFS ALLEGE:**

120. “The Plaintiffs” repeat, reiterate and reallege each and every allegation contained in paragraphs marked “1” through “119” with the same force and effect as if more fully and at length set forth herein.
121. By the aforesaid acts, the Defendant “officers” individually and collectively have violated each Plaintiffs’ right: to privacy under the First and Fourteenth Amendments, to have their homes and persons be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race and excessive force thereby giving rise to a cause of action pursuant to 42 USC 1983.

122. The conduct and actions of the named Defendants police officers, acting under color of law, in seizing each Plaintiff; battering and/or assaulting each Plaintiff; threatening the Plaintiffs; falsely imprisoning, falsely arresting, and upon information and belief in searching each Plaintiff; and using police equipment inappropriately were all done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts and done without lawful justification designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of each of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq., Each Defendant-Officer used excessive and unwarranted force.
123. Each of the Defendant Officers individually and collectively deprived each Plaintiff of his/her rights including, but not limited to the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.
124. That by reason of the aforesaid, Shadae, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.
125. That by reason of the aforesaid, Oshane, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.
126. That by reason of the aforesaid, Diamond, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.
127. That by reason of the aforesaid, Stacy, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs,

attorney's fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTEENTH THROUGH TWENTIETH
CAUSES OF ACTION FOR NEGLIGENCE AGAINST THE "CITY,"
EACH OF THE PLAINTIFFS ALLEGE

128. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "127" with the same force and effect as if more fully and at length set forth herein.
129. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.
130. That as a result of their negligence, the above-named Plaintiffs were falsely imprisoned, falsely arrested, illegally seized, illegally searched, battering, assaulting and had their constitutional and civil rights violated.
131. That by reason of the aforesaid, the Plaintiff, Shadae, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
132. That by reason of the aforesaid, the Plaintiff, Oshane, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
133. That by reason of the aforesaid, the Plaintiff, Diamond, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.
134. That by reason of the aforesaid, the Plaintiff, Stacy, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A TWENTY-FIRST THROUGH TWENTY-FOURTH CAUSES OF
ACTION ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONs 1983 and 1988, BY "ALL POLICE
OFFICERS/DEFENDANTS" FOR FAILING TO INTERVENE
AND MITIGATE AND FOR VIOLATING PLAINTIFF'S RIGHT TO EQUAL
PROTECTION UNDER THE LAW**

135. That Plaintiffs repeats, reiterates and realigns each and every allegation contained in paragraphs marked "1" through "134" with the same force and effect as if more fully and at length set forth herein.
136. That at all times hereinafter mentioned, and on March 7, 2021, all named Police Officers/Defendants were employed by the Defendant City of New York, and/or The New York City Police Department, and was acting under the color of his/their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e., color of law.
137. That at all times, all of the named Police Officers/Defendants were acting pursuant to orders, directives, training, supervision and guidelines from Defendant, City of New York.
138. That during all times hereinbefore and hereinafter mentioned, all named Police Officers/Defendants acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the City of New York and/or New York City Police Department and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiffs, and deprived them of the rights, privileges and immunities secured to them by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
139. That on the date, time and location, the Plaintiffs were lawfully driving and exercising their First-Fourth Amendment rights when confronted by the Defendants-Officers.
140. That the Plaintiffs were not interfering with the Defendants' official functions.

141. That the named Officers/Defendants were acting in concert with each other and used excessive/unwarranted physical force against the Plaintiffs in that the Plaintiffs were battered and assaulted and had their 4th Amendment Rights violated.
142. That upon information and belief, all the named Police Officers/Defendants were present during said conduct, observed said conduct, had the ability to stop and/or mitigate said conduct of their fellow Officers and elected not to do so, causing injury to the Plaintiffs.
143. That upon information and belief, the named Police Officers/Defendants failed to report said misconduct of their fellow officers, and/or failed to provide the Plaintiffs with equal protection under the law.
144. That as a direct proximate result of the Defendants' actions, the Plaintiffs were subjected to physical injury, and subsequent arrest and confiscation of property.
145. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys' fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named Defendant, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWENTY-FIFTH THROUGH TWENTY-EIGHTH CAUSES OF
ACTION ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, 1988, BY "THE POLICE
OFFICERS/DEFENDANTS", IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS
OF THE CITY OF NEW YORK**

146. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "145" with the same force and effect as if more fully and at length set forth herein.
147. That at all times hereinafter mentioned, the Defendant "Officers" were employed by the Defendant City of New York and/or The New York City Police Department and was acting

under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

148. That at all times, the Defendant Officers were acting pursuant to orders and directives from Defendant, “City”.

149. That during all times hereinafter mentioned, “The Police Officers/Defendants” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the “City” and/or New York City Police Department and that “the Officers” were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiffs, and deprived them of their rights, privileges and immunities secured to her by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

150. That the unlawful and illegal conduct of the Defendants deprived the Plaintiffs of the following rights, privileges and immunities secured to them by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiffs to be secure in their person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of Plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
- c) The right not to be subjected to cruel and unusual punishment, and
- d) The right to freedom of speech;
- e) The right to Due Process of Law

151. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of the Plaintiffs’ person, destruction of evidence, falsification of evidence and/or reports, false arrest and false imprisonment, assault and battery, malicious prosecution,

engaging in a cover-up, and threatening the Plaintiffs, the Defendants “City and NYPD”, and the named Police Officers/Defendants, violated the Plaintiffs’ rights and privileges as provided to them in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto. The NYPD, Defendant Police Officers and the City, under the doctrine of respondent superior, violated 42 U.S.C. §1983.

152. That as a direct proximate result of the Defendants’ actions, the Plaintiffs were subjected to great indignities and humiliation, and pain and distress of mind and body and were humiliated and defamed thereby.

153. That by reason of the aforesaid, the Plaintiffs were injured in mind and body, still suffer, and upon information and belief, will continue to suffer great physical and mental pain by the actions of “the Police Officers/Defendants”, individually and collectively.

154. That by reason of the aforesaid, the Plaintiffs have been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWENTY-NINTH THROUGH THIRTY-SECOND CAUSES OF
ACTION FOR MALICIOUS PROSECUTION AGAINST THE “CITY”
ON BEHALF OF SHADAE, OSHANE AND DIAMOND, THE PLAINTIFFS ALLEGE:**

155. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked “1” through “154” with the same force and effect as if more fully and at length set forth herein.

156. The Defendants filled out false police reports and issued a Misdemeanor and Felony Accusatory instrument against the Plaintiffs for the purpose of prosecuting them for the charge that they knew the Plaintiffs did not commit.

157. The Police Officers/Defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal arrests of the Plaintiffs and the injuries that they sustained at the hands of the police.

158. The Plaintiffs were at all times innocent of any crimes charged.

159. That due to the malicious prosecution, the Plaintiffs were caused to be in convalescence and take time off from their respective places of employment to defend themselves as well as forego a employment opportunities.

160. That by reason of the aforesaid malicious prosecution, the Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the Plaintiffs demand judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the thirty-second causes of action, plus attorneys fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
March 4, 2022

/s/ Edward Pichardo
EDWARD PICHARDO, ESQ.
LAW OFFICE OF EDWARD PICHARDO
Attorneys for Plaintiffs
Law Office of Edward Pichardo PLLC
112 West 34th Street, 18 Fl.
New York, New York 10120
(718) 514-9099

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the firm of Law Office of Edward Pichardo, PLLC, and am the attorney of record for the Plaintiffs in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiffs is that the Plaintiffs do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 4, 2022

/s/ Edward Pichardo
By: EDWARD PICHARDO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SHADAE HANSON, STACY HANSON, OSHANE LEVY AND DIAMOND LEVY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DOMINIQUE ARMENIO, SHIELD 18629 AND POLICE OFFICER JOSEPH SORRENTINO SHIELD 15954 OF THE 802 COMMAND; POLICE OFFICER STEVE TORRES, SHIELD 17913 AND POLICE OFFICER TAYLOR CORCORAN, SHIELD 5130 OF THE 075 COMMAND; POLICE OFFICER JESSICA MARTINEZ, POLICE OFFICER JESSICA RODRIGUEZ, SGT. JONATHAN GRAJALES, SHIELD 18182, DET. MICHAEL GANZ, SHIELD 4821 OF 75TH DET SQUAD; LT. WALSH OF HOUSING; POLICE OFFICER ALFREDO VARELA, SHIELD 11290; POLICE OFFICERS JOHN DOE #1 - #6 AND POLICE OFFICERS JANE DOE #1 - #2 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

Law Office of Edward Pichardo PLLC
Attorneys for Plaintiffs
112 West 34th Street, Floor 18
New York, NY 10120
(718) 514-9099

To: All named Defendants herein

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 4, 2022

Signature

/s/ Edward Pichardo
EDWARD PICHARDO, ESQ.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on